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|   |                                   | <p>purported error of law, where moving party did not present any new or different facts in support of its motion].)</p> <p>In their Motion and Reply, Defendants contend the Court has the inherent power to reevaluate and correct its own rulings. They further maintain the Court should do so because the Court's ultimate ruling was substantially inconsistent with statements the Court made at the hearing.</p> <p>Section 1008 does "not limit a <i>court's</i> ability to reconsider its previous interim orders on its own motion, as long as it gives the parties notice that it may do so and a reasonable opportunity to litigate the question." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096-1097; accord, <i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 211 and <i>Cox v. Bonni</i> (2018) 30 Cal.App.5th 287, 312.)</p> <p>"[I]t should not matter whether the 'judge has an unprovoked flash of understanding in the middle of the night' [citation] or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1108; accord, <i>Boschetti v. Pacific Bay Investments Inc.</i> (2019) 32 Cal.App.5th 1059, 1070.) "Trial courts always have discretion to revisit interim orders in service of the paramount goal of fair and accurate decisionmaking." (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15, 34.)</p> <p>However, the Court did not err when it granted Plaintiff's motion for attorneys' fees. While the Court expressed its frustration with Plaintiff's inability, or refusal, to apportion his attorney fees, its ultimate ruling was based on its review and analysis of the billing records, and its personal experience and knowledge regarding the reasonable hourly rates for Orange County.</p> <p>Given this analysis, the Court reduced both the hourly rates, and the number of hours expended, by Plaintiff's counsel. This resulted in the reduction of attorney fees, from the requested amount of \$1,443,140.35, to the awarded amount of \$647,684.00.</p> <p>Defendants' Motion is denied.</p> <p>Plaintiff to give notice.</p> |
| 7 | Paquette v. The Hertz Corporation | <p><u>Demurrer to FAC</u></p> <p>Defendant The Hertz Corporation demurs to the First Amended Complaint of Plaintiff Robert Paquette's Complaint. For the following reasons, the demurrer is OVERRULED.</p> <p>In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (see Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10(a).)

#### First Cause of Action (Identity Theft)

The first cause of action alleges Defendant Hertz willfully obtained Plaintiff's personal identifying information and used the information to rent a car without Plaintiff's consent.

Under California's Identity Theft Act ("CITA"), a "victim of identity theft" can bring an action for damages, civil penalties, and injunctive relief "against a claimant to establish that the person is a victim of identity theft in connection with the claimant's claim against that person." (Civ. Code, § 1798.93(a).) A "claimant" is defined as "a person who has or purports to have a claim for money or an interest in property in connection with a transaction procured through identity theft." (Civ. Code, § 1798.92(a).) A "victim of identity theft" is defined as a "person who had their personal identifying information used without authorization by another to obtain credit, goods, services, money, or property, and did not use or possess the credit, goods, services, money, or property obtained by the identity theft, and has submitted a Federal Trade Commission identity theft report." (Civ. Code, § 1798.92(d).) "In the alternative, the person may have filed a police report in this regard pursuant to Section 530.5 of the Penal Code." (Civ. Code, § 1798.92(d).)

The victim may be able to recover actual damages or attorney's fees, the victim must show "they provided written notice to the claimant that a situation of identity theft might exist, including, upon written request of the claimant, a valid, signed Federal Trade Commission (FTC) identity theft report completed at least 30 days before filing the action, or within their cross-complaint pursuant to this section" or "a valid copy of a police report or of a Department of Motor Vehicles (DMV) investigative report, filed pursuant to Section 530.5 of the Penal Code, at least 30 days before filing the action or within their cross-complaint pursuant to this section." (Civ. Code, § 1798.93(c)(5).)

Here, the FAC alleges that Plaintiff is a victim of identity theft, facts showing Defendant Hertz is a claimant within the statutory definition of the term, that Defendant Hertz attempted to collect on the fraudulent charge, and that Plaintiff provided written notice to Defendant Hertz that